

Defendants contend the second through fourth causes of action fail to state facts sufficient to constitute a cause of action and are uncertain pursuant to Code of Civil Procedure sections 430.10 (e) & (f). Defendants further contend the claims are duplicative of a claim under the Right to Repair Act and duplicative of each other. Defendants argue that section 896 is plaintiffs' exclusive method of remedy for construction defects, citing *McMillin Albany LLC v. Superior Court* (2015) 4 Cal.App.5th 241. The court notes *McMillin* recognized an express carve-out for breach of contract claims. (*Id.* at 256; Civ. Code § 943(a).)

It is otherwise noted that each of the subject causes of action alleges that plaintiffs "have been specifically damaged as herein above alleged in paragraph 18." (Compl., ¶¶ 19, 26, 33.) Paragraph 18, in turn, alleges: "The original purchaser Plaintiffs, and each of them, have performed all conditions, covenants, and promises required by the sales contracts in accordance with the terms and conditions of those contracts." (Compl., ¶ 18.) The reference to paragraph 18 appears erroneous, and renders each cause of action ambiguous. The breach of contract claim is also rendered ambiguous by the failure to attach the subject contract or set out the terms verbatim in the body of the complaint. (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459.)

Based on the foregoing the demurrer is sustained as to the second through fourth causes of action with leave to amend. Any amended complaint shall be filed and served on or before July 31, 2026.

5. S-CV-0053973 Holt of Cal. v. Viking Forebay Holdings

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Plaintiff's Motion to Compel Further Responses to Special Interrogatories, Set One and Requests for Production of Documents, Set One, and Request for Sanctions

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff moves to compel further responses to special interrogatories, set one and requests for production of documents, set one, and requests sanctions.

Plaintiff served defendant John Taylor with special interrogatories, set one, nos. 1-153 on January 9, 2026. The special interrogatories were accompanied by a declaration in support of additional discovery under Code of Civil Procedure section 2030.050. (See Code Civ. Proc. § 2030.030(c).) Under Code of Civil Procedure section 2030.040(a):

... any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

- (1) The complexity or the quantity of the existing and potential issues in the particular case.
- (2) The financial burden on a party entailed in conducting the discovery by oral deposition.
- (3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

Under subdivision (b) of the statute, a responding party may seek a protective order on the ground that the number of specially prepared interrogatories is unwarranted, in which case the propounding party bears the burden of justifying the number of these interrogatories.

Defendant Taylor responded substantively to special interrogatories, nos. 1-35. He objected to the balance of the interrogatories on the grounds the declaration under Code of Civil Procedure section 2030.050 was legal deficient, and the special definitions made the interrogatories vague, ambiguous, and compound, and refused to otherwise respond. Following meet and confer discussions between counsel, plaintiff's counsel served an amended declaration under section 2030.050. (See Leding Decl., Exh. D; Fairbrook Decl., ¶ 9, Exh. 3.) Further attempts to meet and confer were unsuccessful and defendant declined to amend the responses. (Fairbrook Decl., ¶ 10, Exh. 4.) Taylor has separately moved for a protective order.

The court has reviewed the subject interrogatories, the declaration and amended declaration under Code of Civil Procedure section 2030.050, the meet and confer correspondence between counsel, and the arguments as set forth in the briefings. The court finds that in response to Taylor's objections under Code of Civil Procedure section 2030.040(b), plaintiff has met its burden of justifying the number of interrogatories. (See Leding Decl., Exh. D; Fairbrook Decl., ¶ 9, Exh. 3.) The motion to compel is granted as to special interrogatories, nos. 36-153.

Plaintiff served defendant Taylor with request for production of documents, set one, nos. 1-64, on January 9, 2026. Request nos. 13-64 seek documents as identified in corresponding special interrogatories which Taylor refused to answer. In response to each of these requests, Taylor's response is "[n]o documents have been identified in response to this request." In light of the court's ruling on the motion to compel further responses to special interrogatories, the motion to compel further responses to requests for production of documents is likewise granted.

Defendant Taylor shall serve further verified responses within 20 days of service of notice of entry of the court's order.

Plaintiff's request for monetary sanctions against John Taylor is granted in the amount of \$1,260. (Code Civ. Proc. § 2030.290(c).)

Defendant's Motion for Protective Order

Defendant John P. Taylor moves for a protective order, excusing him from responding to plaintiff's special interrogatories, set one, nos. 36-153, and request for production of documents, set one, nos. 13-64.

The court has reviewed the subject discovery, the declaration and amended declaration under Code of Civil Procedure section 2030.050, the meet and confer correspondence between counsel, and the arguments as set forth in the briefings. The court finds that in response to Taylor's objections under Code of Civil Procedure section 2030.040(b), plaintiff has met its burden of justifying the discovery requests.

Defendant's motion for a protective order is denied.

Plaintiff's request for sanctions is denied.

6. S-CV-0055032 Santos, Marcos v. Janiga, Matthew

If oral argument is requested, it will be heard on **August 4, 2026 at 8:30 a.m. in Department 32** by the Honorable Trisha J. Hirashima.

Defendants' Motion to Compel Responses to Interrogatories

Defendants' motion to compel responses to interrogatories is dropped from the calendar as no moving papers were filed with a noticed date of July 21, 2026. The court notes defendants' motion to compel further responses to special interrogatories, set one, and motion to compel further responses to request for production, set two, have been filed and are set to be heard on a later date.

Motion to Compel Inspection of Plaintiffs' Property

Defendants move to compel inspection of plaintiffs' property in its entirety, excluding the interior of any structures. Plaintiffs oppose the motion, excepting an inspection limited to the easement and gate areas in dispute.

On April 14, 2025, plaintiffs filed a complaint alleging: 1. physical invasion of privacy and intrusion on seclusion; 2. intrusion into private places or matter; 3. intentional infliction of emotional distress; 4. trespass; 5. private nuisance; 6. civil harassment; and 7. failure to maintain or repair easement. Plaintiffs allege, *inter alia*, defendants engaged in repeated drone flyovers which interfered with plaintiffs' use and enjoyment of their property and invaded their right to privacy. (Complaint, ¶¶ 9-12.) Plaintiffs further allege defendants physically trespassed on plaintiffs' property. (Id., ¶ 19; Laino Decl., Ex. B.) Plaintiffs allege defendants physically invaded .6 miles into the plaintiffs' property to observe plaintiffs' misuse of a creek. (Id., ¶ 21.) Plaintiffs allege defendants "fired guns near the border" of their property to "scare off [their] workers." (Id.) Plaintiffs bring tort claims for invasion of privacy, nuisance, civil harassment, trespass and intentional